

**Serious Fraud Investigation Offi 180 ce Vs Adarsh Build Estate Ltd. & 186
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Present: Shri Hari Kishan, Senior Prosecutor for SFIO along-with Shri Lokender Singh Raghav, Standing Government Counsel for the complainant -SFIO.

Accused Vivek Harivasi (**115**) and 140 on interim bail granted by Hon'ble Apex Court vide orders dated 17.12.2020 and 29.10.2021 respectively.

Accused (Leena Harivassi (**146**), Vimal Sanwal Sharma (**147**), Vijay Shukla (**149**), Ajit Singh (**150**), 154, Ramlal Arya (**158**), Hemant Kumar (**159**), Parveen Kumar (**161**), Ravi Kr. Tak (**166**), Raj Kumar Bohra (**171**), Raj Kumar Modi (**176**), Dishan 179,182 to 186 in person being on bail.

Accused Mahesh Dutt Sharma (No. **178**) not present but represented by Sh. J.H. Khan, Advocate. Interim protection granted by Hon'ble High Court vide order dated 10.08.2020, which has been continued vide last order dated 24.05.2022 till 25.08.2022.

Accused Akshat Singh (No. **136**) not present but represented by Sh. Vishal Gupta, Advocate. Anticipatory bail is pending for consideration to this Court.

Accused Abhay K. Shah (No. **127**) not present but represented by Ms. Manisha Singh, Advocate. Anticipatory bail is pending for consideration before Hon'ble High Court.

Accused Shiv Raj Sharma (No. **160**) not present but represented by Sh. Anil Kumar Yadav, Advocate.

Accused Hemant Kumar Jain (No. **159**) not present but represented by Ms. Sunita Saini, Advocate.

AR Kanak Krishi of accused Company (No. **106**) not present but represented by Sh. Nitish Bhardwaj, Advocate.

AR Devender Kumar of accused Company (No. **112**) not present but represented by Sh. Anubhav Almadi, Advocate.

Accused Jainam Rathore (No. **130**) on bail granted by Hon'ble Supreme Court vide order dated 18.04.2022 in SLP No. 1554 of 2022 with Sh. J.H. Khan, Advocate.

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Accused Nitin Rathor (No. **116**) not present but represented by Sh. Sameer Pandey, Advocate. Anticipatory bail of accused is pending for consideration before the Hon'ble High Court.

Sh. Manul Mitra, Advocate for accused Meenakshi Modi (No. **132**) and Neha Ghemawat Modi (No. **124**).

Sh. Neeraj Dev Gaur, Advocate for accused Raj Kumar Bohra (No. **171**).

Sh. Neeraj Dev Gaur, Advocate for accused Megha Chauhan (No. **163**).

Accused nos. **144,145,148,151** on bail but granted personal personal exemption till further orders vide order dated 22.11.2019, represented through Shri Vishal Gupta, Advocate.

Accused Nos. **156** and **157** on bail but exempted from personal appearance till further order vide order 31.01.2020, represented through Shri Piyush Jain, Advocate.

Accused Nos. **163** and **164** on bail but exempted from appearance for today only, represented through Shri Neeraj, Advocate.

Accused Nos. **167, 168, 169** on bail but granted permanent exemption) vide order dated 04.09.2019, represented through Shri Rakesh Kumar, Advocate.

Accused No. **174** on bail but granted personal exemption till further order vide order dated 19.02.2021, represented through Shri Dinesh Kumar, Advocate.

Accused Nos. **180, 181** on bail but granted personal exemption till further orders vide order 22.11.2019, represented through Shri Manish, Advocate.

Accused Nos. **1** to **70**, companies, represented through accused Rahul Modi (123) in custody in Jaipur jail.

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Accused Nos. **71** to **78** , companies, represented through accused Sidharth Chauhan (135) against whom PO proceedings initiated today.

Accused No. **79** , company represented through accused Vivek Hari Vyas (**115**) presently on interim bail granted by Hon'ble apex Court vide order dated 17.12.2020

Accused Nos. **80**, company, represented through accused Naveen Kumar (**139**).

Accused Nos. **81** and **82**, companies, represented through accused Surender Singh (140) who is on interim bail granted by Hon'ble Apex Court vide order dated 29.10.2021.

Accused Nos. **84**, company, represented through accused Abhya K. Shah (**127**).

Accused Nos. **85**, company, represented through accused Jainam Rathod (No.130).

Accused Nos. **86, 87** and **88** , companies, represented through AR Ravi Kumar Tak, AR (**166**) on bail in person

Accused No. **89**, company, represented through accused Raj Kumar Bohra (171) on bail in person.

Accused Nos. **90** to **93**, companies, represented through accused Vivek Hari Vyas (**115**), on interim bail granted by Hon'ble Apex Court vide order 17.12.2020

Accused Nos. **94** to **97** , companies, represented through Shri Rahul, AR, in person

Accused Nos. **98**, company, represented through Shri Naresh Kumar, AR, in person

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Accused Nos. **99** and **100**, companies, represented through accused Raj Kumar Modi (**176**) on interim bail granted by Hon'ble apex Court vide order 16.08.2021

Accused No. **101**, company, represented through Shri Abhishek, AR, in person

Accused No. **102**, company, represented through Shri Deepak, AR, in person

Accused No. **103**, company, represented through Shri Dharmender, AR , in person

Accused No. **104**, company, represented through Shri Pawan Sharma, AR , in person

Accused No. **105**, company, represented through Shri Anup AR , in person

Accused No. **106**, company, represented through Shri Kashi Nath Jha, AR , in person

Accused No. **107**, compnay, represented through Shri Fateh Singh, AR , in person

Accused No. **108**, company, represented through Shri Ranjan Kumar, AR , in person

Accused No. **109**, company, represented through Shri Vikas Paul, AR , in person

Accused Nos. **110**, company, represented through Shri Raju Yadav, AR , in person

Accused No. **111** company, represented through Shri Ritik Sharma, AR , in person

Accused Nos. **112**, company, represented through Shri Devender, AR, in person.

Accused No **113** is not produced by Jaipur Jail authorities as he is shifted to Hanumangarh Jail.

Accused nos. **114,120,122,123,125,126,131,134,142** are not produced by Jaipur Jail authorities as they are shifted to Jodhpur Jail.

None for the accused Nos. **83**.

Accused (No. **187**) Mahesh Kumar Tak absent.

Proceedings qua accused Mahender Kumar Tak (155) and Vijay Kumar Jindal (175) abetted vide order dated 25.032022.

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Four separate applications for seeking exemption from personal appearance of accused Hemant Kumar Jain (**159**), AR Krishi Nath Jha (**106**), AR Devender Kumar (**112**) and Mahesh Dutt Sharma (**178**) have been moved through their respective counsel. Heard. In view of grounds mentioned in the applications, personal appearance of the accused Hemant Kumar Jain (**159**), AR Krishi Nath Jha (**106**), AR Devender Kumar (**112**) and Mahesh Dutt Sharma (**178**) are exempted for today only.

An application seeking permission to travel abroad has been filed on behalf of accused Raj Kumar Bohra (**171**). Copy of application supplied. Now to come up on **08.07.2022** for filing reply as well as for consideration on aforesaid application.

An application seeking return of her passport for the purpose of renewal of her minor child's passport has been filed on behalf of accused Megha Chauhan (**163**). Copy of application supplied. Now to come up on **08.07.2022** for filing reply as well as for consideration on aforesaid application.

Reply to the application with prayer to drop/kept in abeyance the proceedings initiated under Section 82 Cr.P.C. against the applicant/accused Akshat Singh (**136**) not filed. However, learned Senior Public Prosecutor has placed on record copy of order dated 24.06.2022, passed by Hon'ble High Court in CRM-M-27332 of 2022 whereby the Hon'ble High Court has pleased to direct the trial Court to adjourn the proclamation proceedings qua the accused beyond the date fixed by this Court in the anticipatory bail application. Now to come up on **08.07.2022** for consideration on aforesaid application as well as for presence of accused Akshat Singh (**136**).

An application under Section 317 Cr.P.C. for dispensing with the personal appearance of the applicant/accused and permitting him to cause appearance by his pleader has been filed on behalf of accused Shiv Raj Sharma

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(162). Copy of application supplied. Learned counsel for accused Shiv Raj Sharma submits that he has filed a petition before the Hon'ble High Court bearing CRM-M-27409 of 2022 for becoming approver in this case and same is fixed for **11.07.2022**. Heard. Keeping in view the pendency in Hon'ble High Court, PO proceedings qua accused Shiv Raj Sharma (162) are adjourned till further orders. Now to come up on **27.07.2022** for filing reply as well as consideration on aforesaid application.

Application on behalf of accused Peeyush Aggarwal (173) with prayer to kept in abeyance the proceedings initiated under Section 82 Cr.P.C. has been filed. Copy supplied to Sr. Public Prosecutor. Now to come up on **08.07.2022** for filing reply as well as for consideration on aforesaid application.

Applications on behalf of accused Nitin Rathore (116) and Abhay K. Shah (127) seeking appropriate directions, have been filed. Along-with application a copy of order dated 24.05.2022, passed by Hon'ble Punjab and Haryana High Court in CRM-M-51929 of 2019 has been annexed whereby Hon'ble High Court has pleased to adjourn the P.O. proceedings qua the petitioners beyond the date fixed by Hon'ble High Court i.e. 25.08.2022. Hence, PO proceedings qua the above-said accused persons is adjourned to **30.08.2022** and also for awaiting order of Hon'ble High Court.

Similarly, the Hon'ble High Court has pleased to adjourn the P.O. proceedings qua the accused Jinender Vyas (**No.118** CRM-M-3174 of 2019); Paras Bolia (**No. 121** CRM-M-25412 of 2020); Manish Chaudhar (**No. 128** CRM-M-27804 of 2022); Deepak Shirmali (**No. 129** CRM-M-25084 of 2022); Parkash Chand Purohit (**No. 133** CRM-M-25516 of 2022); Shinder Pal Singh and Gurbeer Singh Sandhu (**No. 137 and 138** CRM-M-27845 of 2022); Aditya Sarda (**No. 141** CRM-M-17518 of 2022); Nazma Khan and Shabbir Khan (**No. 152 and 153** CRM-M-25052 of 2022 and

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CRM-M-25054 of 2022); Naveen Chaudhary (No. 162 CRM-M-25508 of 2022); Shyam Bihari Gupta (No. 165 CRM-M-17096 of 2022); Sudhir Mehta (No. 170 CRM-M-9417 of 2021); Saurabh Tak (No. 172 CRM-M-24299 of 2022) and Rajiv Kumar Rana (No. 177 CRM-M-13648 of 2022) beyond the date fixed by Hon'ble High Court i.e. 25.08.2022. Hence, PO proceedings qua the above-said accused persons is adjourned to **30.08.2022** and also for awaiting order of Hon'ble High Court.

Proclamation proceedings qua accused Naveen Kumar (139) are adjourned keeping in view the pendency of his anticipatory bail application before this Court. Hence, PO proceedings qua the above-said accused person is adjourned to **07.07.2022** and also for consideration his bail application.

Proclamation proceedings qua accused Shiv Raj Sharma (162) are adjourned keeping in view the pendency of his anticipatory bail application before this Court. Hence, PO proceedings qua the above-said accused person is adjourned to **07.07.2022** and also for consideration his bail application.

Non-bailable warrants issued against accused **Meenakshi Modi (132) and Neha Ghemawat Modi (124)** were recalled vide order dated **02.06.2022** in view of the order passed by Hon'ble Supreme Court of India in SLP (Crl.) 4732-4733 of 2022. Learned Public Prosecutor submits that proceedings before the Hon'ble Rajasthan High Court are still pending. However, he submits that accused have not been appearing personally despite interim protection has been granted to them by the Hon'ble Rajasthan High Court. Heard. Now to come up on **30.08.2022** for appearance of **applicant/accused Meenakshi Modi (132) and Neha Ghemawat Modi (124)**.

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Accused namely Mukesh Modi (113) not produced by Jaipur Jail authorities as he is confined in Hanumangarh jail. Let, the production warrant of accused Mukesh Modi (113) be issued to Superintendent, Hanumangarh Jail for **27.07.2022** for appearance of accused through VC.

Accused namely Rahul Modi (114), Vaibhav Lodha (120), Virender Modi (122), Rohit Modi (123), Rajeshwar Singh (125), Bharat Modi (126), Ishwar Singh Sindal (131), Vivek Purohit (134), Bharat Das Vaishnav (142) are not produced through Video Conferencing from Jaipur Jail as are confined in Jodhpur Jail. Let, the production warrants of accused Rahul Modi (114), Vaibhav Lodha (120), Virender Modi (122), Rohit Modi (123), Rajeshwar Singh (125), Bharat Modi (126), Ishwar Singh Sindal (131), Vivek Purohit (134), Bharat Das Vaishnav (142) be issued to the Superintendent, Jodhpur Jail for **27.07.2022** for appearance of accused through VC.

Accused namely Vivek Harivyasi (115), Surender Singh (140), Raj Kumar Modi (176) are on interim bail granted by the Hon'ble Supreme Court vide orders dated 17.12.2020, 29.10.2021 and 16.08.2021 respectively. Now to come up on **30.08.2022** for appearance.

Accused namely Vijay Shukla (149) has been granted interim protection by the Hon'ble Supreme Court vide order dated 26.10.2021. Accused present in person. Now to come up on **30.08.2022** for appearance.

Accused No. 117 Priyanka Modi on regular bail in terms of order dated 07.02.2022 passed by the Hon'ble Supreme Court. Now to come up on **30.08.2022** for appearance.

Production warrants issued against accused (No. 177) vide order dated 07.05.2022 not received back in any mode. Let fresh production warrants of accused Rajiv Kumar Rana (No.177) in the name of Superintendent, District Jail, Jaipur, for producing him in the Court on **27.07.2022**.

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Accused namely Megha Chauhan(163), Indu Tak (164), Ichchhita Dungarwal (180), Neha Kataria (181), who are on bail, have sought exemption from appearance for today. Heard. In view of the contents of the application, all these accused are exempted from appearance for today only.

Warrant of arrest issued against accused namely **Mahesh Kumar Tak (187)** has not been received. Let fresh warrants of arrest be issued against accused Mahesh Kumar Tak (187) for **27.07.2022** and the same be got executed through special messenger.

Learned Special Public Prosecutor has further informed that there are five accused persons namely **Parveen Kumar (161), Nimesh Kumar Ramesh Soni (182), Ritu Raj Singh (183), Shashank Singh Rathore (185)** and **Jitesh Kumar Parmar (186)**, who were granted bail by Hon'ble High Court on the ground that they shall co-operate with the prosecution, as approvers. He also intimated that applications of these accused are on record to this effect. He further requested to record their statements in accordance with law. Heard. In view of the directions issued by Hon'ble High Court, all the said accused are directed to remain present on **30.08.2022** for recording of their respective statements as approvers.

Today the case is also fixed for appearance of accused Vinay Kumawat (119), Sidhartha Chauhan (135) and Sudhir Punia (143) through proclamation but they have not come present today nor any intimation on their

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behalf have been received. Learned Prosecutor submits that these above-said accused have been deliberately avoiding their presence before this Court. Further, no interim relief has been ordered qua these accused by the Hon'ble High Court. Hence, the above accused may be declared proclaimed person in terms of order dated 25.03.2022. Heard. The present case has been received by way of transfer to this Court and also keeping in view of this fact that PO proceedings initiated vide order dated 25.03.2022 have been adjourned qua many of the accused as stated above, therefore, the present case is adjourned to **27.07.2022** for consideration on the point declaration of above-said accused person as proclaimed person.

Sr. Nos.	Accused Nos.	Further stage/proceedings	Adjourned to
1.	Accused Nos. 149, 159, 106, 112, 116, 127, 178, 132, 124, 115, 140, 149, 117, 163, 164, 180, 181, 86 to 88	They are on bail and fixed for their appearance.	30.08.2022
2.	Accused Nos. 136	Consideration	27.07.2022
3.	Accused Nos. 139, 162, 171, 173, 163, 160	Appearance as well as for consideration.	08.07.2022
4.	Accused Nos. 118, 121, 128, 129, 133, 137, 138, 141, 152, 153, 162, 165, 170, 177.	Proceedings adjourned beyond date and fixed for appearance to this Court	30.08.2022
5.	Accused No. 187	Non-bailable warrants	27.07.2022
6.	Accused Nos. 150, 158, 159, 161, 179, 182, 183, 184, 185	Appearance. They shall cooperate with prosecution as approvers	27.07.2022
7.	Accused No. 83	Proceedings to Sub-Section 305 Cr.P.C	30.08.2022.
8.	Accused Nos. 130, 114, 120, 122, 123, 125, 126, 131, 134, 142,	They are in custody and produced through VC and the case is adjourned for their production through VC	27.07.2022
9.	Accused Nos. 113, 117	Production warrant	27.07.2022
10.	Accused Nos. 132 and 124	Warrants recall and fixed for further orders	30.08.2022

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11.	Accused Nos. 155, 175	Proceedings abetted	
12.	Accused Nos. 119, 135, 143	Consideration on the point of declaration of PO	27.07.2022

Date of order: 02.07.2022

(Dr. Virender Parshad)
Additional Sessions Judge,
Gurugram.
(UID No. HR0082)

Sameer
Stenographer-II

Dr. Virender Parshad
ASJ-cum-Special Judge
Gurguram/UID No. HR0082